

That, when any cause shall become abated or shall be compromised after the same is set down to be heard, the Solicitor for the plaintiff shall certify the fact to the Registrar of the Court, who shall cause an entry thereof to be made in his Cause Book, and the Solicitor for the plaintiff shall be allowed a fee of two shillings and sixpence for such certificate, if he shall certify the fact as soon as the same shall come to his knowledge.

(26).

July 1837.

Abatement or
Compromise of
a cause after it
is set down.

That, for the purpose of enabling all persons to obtain precise information, as the state of any cause and to take the means of preventing improper delay in the progress thereof, any Solicitor shall at the request of any person whether a party or not in the suit or matter inquired after procure and furnish a certificate from the Register-office specifying therein the dates and general description of the several proceedings which have been taken in any cause in the said office, whether such Solicitor be or not concerned as Solicitor in the cause, and that the Registrar shall be entitled to receive the sum of two shillings for such certificate and no more.

(29).

Solicitor at the
request of any
person to pro-
cure certificate
of proceedings.

That, whereas the sum of twenty pounds required by the Rules of Practice in England to be deposited on petitions of re-hearing is unsuitable to the circumstances of this Province, and it is expedient to reduce the same. It is therefore ordered that henceforth it shall be sufficient to deposit with the Registrar of this Court on every petition of re-hearing the sum of ten pounds Halifax Currency.

(81).

August, 1841.
Deposition
on petition of
re-hearing.

That all writs, notices, orders, warrants, rules, and other documents, proceedings, and written communications which do not require personal service upon the party to be affected thereby, shall be deemed sufficiently served if such document, or a copy thereof as the case may be, shall be served on the Solicitor or his agent to be specified in the manner mentioned in the first Order by the Solicitor of the party serving the same or his agent; and, if any Solicitor shall neglect to cause such entry to be made as is required by the said first Order, then the leaving a copy of any such writ, notice, order, warrant, rule, or other document, proceeding or written communication for the Solicitor so neglecting as aforesaid in the Registrar office shall be deemed sufficient service on him unless the Court shall under special circumstances think fit to direct otherwise.

(85).

January 1842.
Service on
Solicitor or
Agent.

That clerical mistakes in Decrees or Decretal Orders or errors arising from any accidental slip or omission may at any time before enrolment be corrected upon petition without the form and expense of a re-hearing.

(31).

July, 1847.

Correction of
clerical and ac-
cidental errors
in Orders and
Decrees.